AFFIDAVIT

I/We ,
Bidder/Partner/Legal Attorney/Accredited Representative of M/s ………………………… ……………….. ……………….. ….
………………………..……………………………………………………………………………………….solemnly declare that:

1. I/We are submitting Tender for the Work ……
………………………………………………………………………. against Tender Notice No
…………………………………………………..dtd. ……………………….

2. None of the Partners of our firm is relative of employee of The Assistant Engineer, LID&EW Section, Kulathupuzha Grama Panchayat(Name of the Employer) who is involved with the arrangement and execution of this work.

3. All information furnished by us in respect of fulfilment of eligibility criteria and qualification information of this Tender is complete, correct and true.

4. All documents/credentials submitted along with this Tender are genuine, authentic, true and valid.

5. I/we undertake to deploy all plant and machinery, tools and tackles, man and materials etc. as required for execution of the work.

6. I/We hereby declare that I/We have perused in detail and examined closely the Central Public Works Department Specifications, Revised Kerala PWD Manual-2012, Kerala PWD Quality Manual and Laboratory Manual, before I/We submit the tender/ bid and I/We agree to be bound by and comply with all such specifications and requirements.

7. If any information and document submitted is found to be false/incorrect at any time, department may cancel my/our Tender and action as deemed fit may be taken against us, including termination of contract, forfeiture of all dues including Earnest Money, revoking of Bank Guarantees and banning/delisting of our firm and all partners of the firm etc.

Signature of the Tenderer,

Dated

Requisition for e-Payment

[To be attached with tender form as per
G.O (P) No.06/2012/PWD dated 10/01/2012]

Certified that I am having a Savings / Current Account in

Name of Bank	
at Name of Branch	
with IFSC Code	
the Account Number is	

I wish to receive all payments in this account through NEFT and RTGS systems, as the case may be, for all payments relating to this work.

Name of Bidder :	
Address of Bidder :	
Adhaar No. :	
PAN :	
GST Reg. No. :	
Contact . No. :	Land Line :
	Mobile :
e mail :	

Signature with date

Place:
Date:

E Documents Creator Ver.19 Powered By Pradeepen Thulika

FORMAT FOR INTEGRITY PACT (Certificate to be furnished by the bidder with the tender document downloaded from e-GP Web- site)

CERTIFICATE

I/We ....
....
....undertake that the tender submitted by us is downloaded from e-GP Website (www.etenders.kereala.gov.in) and is same in content and form (verbatim), and any deviation, of detected, at any stage, would entitle the Employer to reject our bidding/ offer without assigning any reason or recourse to any penal action and would be legally binding on us.

Signature(of tenderer)
with seal

FORM OF TENDER

Name of Work: ……………………………………………………………………………………………………
……………………………………………………………………………………………………..

To

The Assistant Engineer, LID&EW Section , Kulathupuzha Grama Panchayat

I/We do hereby tender to execute the works enumerated in the Schedule accompanying in accordance with the terms in your tender Notification No. ………………………………………………………………………………Dtd. ………………………………and specifications and conditions of contractin the bidding document.

Copy of the electronically signed specifications signed is also enclosed.

I/We further agree to complete the whole work in …………………. Days days from date of receipt of order to start work, and / orin the case of piece-works, maintain the minimum rate or progress specified in the Tender Schedule.

I/We do/do not agree to accept and carry out such portion of the work included in my/our tender as may be allotted to me /us if the whole work be not given to me/us.

In consideration I/We being registered as a Bidder in the Kerala P.W.D/Central PWD /LSGD / Irrigation Department/Other Central or State Government Departments/State or Central Public Sector Undertakings etc and invited to tender, I/We agree to keep the tender open for acceptance of 30 days from the date of submission thereof and not to make any modifications in its terms and conditions which are not acceptable to Government.

I/We agree that Arbitration shall not be a means of settlement of any disputes or claims arising out of the contract relating to the work.

A sum of Rs ……………………..is hereby remitted online on the e-GP web site as Earnest Money. If I/We fail to keep the tender open asaforesaid or make any modifications in that terms and conditions of the tender which are not acceptable to Government.

OR

If after tender is accepted, I/We fail to execute the agreement as provided in the concerned clause of tender notifications or to commence the execution of the work as provided in the conditions. I/We agree that the government shall , without prejudice to any other right or remedy be at liberty to forfeit the said earnest money absolutely and also recover from me/us the entire loss that may be caused to the Government by the retender or rearrangement of the work or otherwise under the provision of the Revenue Recovery Act or otherwise.

Acc:

1. Tender Schedule (submitted with Financial Bid) :	Yes
2. Bid security	Rs ……………………..Remitted through online)
3. Signed copy of full tender/bid documents:	Yes
4. Signed copy of drawings :	Yes
Nationality :	Indian

Signature:……………………….

Full Name of Bidder:…………………………

Place of Residence and
Address

APPENDIX
FORM OF PRELIMINARY AGREEMENT

Preliminary Agreement entered into this……...day of .... Betweenthe .... for and on behalf of the Governor of Kerala (hereinafter called the Government) of the One Part and Sri… .. . .…………….............................. ………………………………………………………….................................. . . . . . ….......……………………………..…………………………………………. ....… (H.E. full name and address of the contractor) (hereinafter called the contractor) of the Other Part for the execution of the agreement as well as for the execution of the work.

WHEREAS the Government invited tenders for the work.... .. . . (H.E. full name of the work by notification No…........…………………… Dated ……..….. ……....................in the **eProcurement site**

AND WHEREAS PARA-13 OF THE NOTICE INVITING TENDERS STATED AS FOLLOWS.

Before commencing work of within a week after the date when the acceptance of the tender has been intimated to him the tenderer shall deposit a sum sufficient to mate to the balance of 5 percent of the probable value of contract which together with the amount of earnest money deposited shall be treated as security for the proper fulfillment of the same and shall execute an agreement for the work in the PW Schedule Form. If the faults to do

Contractor

this or in the case of PW contracts maintain a specified rate of progress (to be specified in each case in the tender schedule) earnest money and security deposit shall be forfeited to Govt. and fresh tenders shall be called for or the matter otherwise disposed off. If as a result of such measures due to the default of the tenderer to pay the requisite deposit, sign contracts or take possession of the work any loss to Govt. results the same will be recovered from him as arrears of revenue, but should it to be a saving to Govt. the original contactor shall have to claim whenever to the difference. Recoveries on this or any other account will be made from the sum that may be due to the contractor on this or any other subsisting contracts of under the Revenue Recovery Act or otherwise the Government may decide.

NOW THEREFORE PRESENTING WITNESS AND IT IS MUTULLAY AGREED AS FOLLOWS.

1. The terms and conditions for the said contracts having been stipulated in the said tender from to which the contractor has agreed, a copy of which is here to appended which from part of this agreement, it is agreed that the terms and conditions stipulated therein shall bind the parties to this agreement except to the extend to which they are abrogated or altered by express terms and conditions herein agreed to and in which respect the express provisions herein a shall superide those of the said tenders form.

2. The contractor hereby agrees and undertake to perform and fulfill all the operations and obligations connected with execution of the said contract work viz .. . .
. . . .
. . . . (H.E. The name of the work) if awarded in favour of the contractor.

Contractor

3. If the contractor does not come forwarded to execute the original agreement after the said work is awarded and selection notice issued in his favour of commits breach of any of the conditions of the contract as stipulated in Clause-13 of the notice inviting tenders as quoted above within the period stipulated them, the Govt. may re-arrange the work otherwise or got it done departmentally at the risk and cost of the contractor and the loss so sustained by the Govt. can be realized from the contractor under the Revenue Recovery Act as if arrears of land revenue as assessed, quantified and fixed by an adjudicating authority consisting of the Secretary (Public Works), Chief Engineer (Arbitration) and Chief Engineer (Administration) or any other officer of officers authorized by Govt. In this behalf taking into consideration of the prevailing Public Works Departments rates and after giving the notice to the contractor. The decisions taken by such authority, Officer or Officers shall be final conclusive and shall binding on the contractor.

4. The contractor further agree that any amount found due to the Government under or by virtue of this agreement shall be recoverable from the contractor from his E.M.D. and his properties movable and immovable as arrears of land revenue under the provisions of the Revenue Recovery Act for the time being in force or in any other manner as the Government may deem fit in this regard.

5. The contractor further assures that it is clearly understood that the settlement of claims either by part bills of by final bills will be made only according to the availability of budget provision and allotment of funds made with the Divisional Officer in-charged of the work under the respective had of account in which the work is sanctioned and arranged and also subject to the seniority of such bills. No claims for interest or for damages whatsoever shall be made for the belated settlement of claims of bill.

IN WITNESS WHEREOF Shri. ....…………………………………….......
.... (H.E. the name of the Officer of the Department for and on behalf of the Governor) and Shri..................................………......
………………..………………………………….....
……………………………………..………………........the contractor have set their hands on the day and year first above written.

In the presence of witnesses :-
1.

2.

Signed and delivered by Shri. ……..……………......…………………………….….
(the Contractor)
In the presence of witnesses:-
1.

2.

Contractor